

EXCLUSIVE RIGHT TO SELL LISTING AGREEMENT

This Agreement is between Willow Pond Estate LLC ("Seller") and
NextHome World Class ("Firm").

1. **Services Provided:** Seller hires Firm as an exclusive agent to help Seller sell the Property, defined below. Seller agrees to cooperate with Firm and agrees that all leads, prospective buyers, marketing (as defined below), offers, negotiations, contracts, inspections, appointments, and any other activities (the "Services") in connection with selling the Property will be facilitated by and through Firm only. Firm will act in the best interest of Seller. Firm may assign other agents in Firm to provide the Services at any time.
2. **Term of Agreement:** Unless the box below is checked, this Agreement will be effective when signed by Seller and Firm. It will expire at 11:59 p.m. on 10/02/2025 ("Expiration Date").

☐ **Existing Agency:** The Property is currently listed for sale exclusively with another firm. The listing agreement expires on _____, This Agreement will become effective immediately when current listing agreement ends.

3. **"Property":** Street Address: 447 Willow Pond Lane
 City: Hiddenite Zip: 28636 County: NC, NC
 Lot/Unit _____, Block/Section _____, Subdivision/Condominium _____
 Plat Book/Slide 10 at Page(s) 183 PIN/PID: 0064741
 Other description: OFF SR 1456
 Some or all of the Property may be described in Deed Book 622 at Page 938-939
 The Property shall include all the above real estate described together with all appurtenances thereto including the improvements located thereon and the Fixtures as defined below.
☐ **Additional Parcels:** If additional parcels are part of this Agreement, they are described in an attached exhibit, and the term "Property" will include all the additional parcels in the exhibit.
4. **"Fixtures":** Unless excluded in this section, all the items below existing on the Property and all existing fixtures will be included in the sale of the Property as part of the purchase price and free of liens. The bulleted items below include both traditional and "smart" versions as well as any dedicated or related equipment and remote-control devices.

- Alarm and security systems (attached) for security, fire, smoke, carbon monoxide or other toxins with all related access codes, sensors, cameras, dedicated monitors, hard drives, video recorders, power supplies and cables; doorbells/chimes
- All stoves/ranges/ovens; built-in appliances; attached microwave oven; vent hood
- Antennas; satellite dishes and receivers
- ~~Basketball goals and play equipment (permanently attached or in-ground)~~
- Ceiling and wall-attached fans; light fixtures (including existing bulbs)
- ~~Exercise equipment/devices that are attached~~
- Fireplace insert; gas logs or starters; attached fireplace screens; wood or coal stoves
- Floor coverings (attached)
- Garage door openers
- ~~Generators that are permanently wired~~
- Thermostats
- Storage shed; utility building
- ~~Solar electric and solar water heating systems~~
- ~~Electric vehicle chargers~~
- ~~Invisible fencing with power supply~~
- Landscape and outdoor trees and plants (except in moveable containers); raised garden; landscape and foundation lighting; outdoor sound systems; permanent irrigation systems; rain barrels; landscape water features; address markers
- Mailboxes; mounted package and newspaper receptacles
- Mirrors attached to walls, ceilings, cabinets or doors; all bathroom wall mirrors
- ~~Swimming pools; spas; hot tubs (excluding inflatable pools, spas, and hot tubs)~~
- Sump-pumps, radon fans and crawlspace ventilators; de-humidifiers that are permanently wired
- Surface-mounting brackets for television and speakers; recess-mounted speakers; mounted intercom system
- Window/Door blinds and shades; curtain/drapery rods and brackets; door and window screens and combination doors; awnings and storm windows
- Water supply equipment, including filters, conditioning and softener systems; re-circulating pumps; well pumps and tanks

1 of 7



North Carolina Association of REALTORS®, Inc.

Seller Initials _____ Agent Initials LF

STANDARD FORM 101

Revised 1/2025

© 1/2025

- a. **Duty to Unpair and Delete Data:** Prior to Closing, Seller must "unpair" from any devices that will be delivered to a buyer. This includes, but is not limited to, hubs, virtual assistants, mobile devices, and vehicles. Seller must delete any personal data and restore all devices to factory default settings unless otherwise agreed. Seller's duty will survive Closing.
- b. **Items Leased or Not Owned:** Any item which is leased or not owned by Seller, such as satellite dishes, appliances, solar panels, electric car chargers, and alarm systems must be identified here and will not convey: Direct TV, Blossman Gas Tank, HughesNet. Except for any leased fuel tank identified in section 12(s), Seller understands that if a leased item is not excluded here, but otherwise subject to being conveyed to a buyer in a purchase contract, then Seller must convey the item to the buyer at closing free of liens.
- c. **Other Excluded Items:** The following will also be excluded from the sale of the Property: Property Managers Assets in barn, apartment, stable, detached garage and including refrigerator in kitchen of apartment and freezer in carport.
- d. **Personal Property:** The following personal property present on the Property on the date of the offer shall be transferred to a buyer at no value at closing: Everything seen at time of showing in the Main House excluding furniture. As example all blinds, appliances, washer/dryer, refrigerators and freezers including those in garage,... (Continued: Text Overflow Addendum, paragraph 1)
5. **Listing Price:** Seller agrees to list the Property for \$ 7,200,000.00 ~~\$6,500,000~~. Seller will accept payment from a buyer on the following terms (check all that apply): ☒ Cash ☐ FHA ☐ VA ☒ USDA ☐ Conventional ☐ Loan Assumption ☐ Seller Financing ☐ Other: N/A. Seller agrees to sell the Property for the listing price or any other price or terms Seller may accept.
6. **Marketing:** Firm will use its best efforts to find a ready, able, and willing buyer. Unless otherwise directed below, Firm will begin marketing on (insert date) 03/27/2025 ("Marketing Date").
- a. Seller authorizes Firm to (initial only one option):
- Public Marketing: Firm will submit the Property to listing services and market the Property to the general public. Seller authorizes Firm to provide any information a listing service may request to the listing service. Seller in particular authorizes:
- ☒ **"Coming Soon" Advertising.** Firm will advertise the Property as "coming soon" in accordance with any rules applicable to such marketing. The status of the Property will change to "active" on 04/02/2025.
- ☐ **Signs.** Firm will place yard signs and other signage on or near the Property and remove them when the Services are complete.
- ☐ **Open Houses.** Firm will conduct open houses and coordinate dates and times with Seller.
- ☒ **General Advertising.** Unless otherwise agreed in Form 105, Firm will advertise the Property on the internet and in other media as Firm, in its sole discretion and expertise, will direct. Seller gives Firm authorization to use, license, or sell information about the Property to others in order to provide the Services. Seller understands that the Property's address will be visible to the public.
- Office Exclusive: Firm will only market the Property to buyer prospects who are clients of Firm. Seller authorizes Firm to notify any listing service of this office exclusive designation, provided that the Property will not be advertised in the listing service. Seller agrees to sign any document required by the listing service to permit the Property to be marketed as office exclusive.
- b. **Lock Boxes:** Seller ☐ does ☒ does not agree to allow Firm to place a lock box on the Property for keys.
- c. **Marketing Risks:** While marketing is a critical element to allowing Firm provide the Services, it does have some risks, which include, but are not limited to: unauthorized use of keys; inability to control visitors to the Property, including the taking of photos or video; and incorrect information about the Property being published or information about the Property being misused by others. Seller understands that Firm cannot control these and other risks, and that Firm may not have control of information that may be published about the Property. Such information will therefore not be removed. Seller agrees to secure all valuables, medications, and other personal property during the term of this Agreement, and to release and discharge Firm from any liability not caused by Firm's gross negligence arising out of marketing the Property.

- d. **Surveillance Devices:** Seller agrees to disable any and all audio devices whenever the Property is being shown, during inspections, and any other time Firm directs. See section 14(a) below for more information.

7. Fees and Costs for the Services:

- a. **Negotiable Fee:** SELLER UNDERSTANDS THAT THE AMOUNT, FORMAT, OR RATE OF REAL ESTATE COMPENSATION IS NOT FIXED BY LAW BUT IS SET BY EACH BROKER OR FIRM INDIVIDUALLY AND IS FULLY NEGOTIABLE.

- b. **"Firm's Fee":** Seller agrees to pay Firm as follows for the Services (check all that apply):

☐ A non-refundable retainer of \$ _____ which will be credited toward Firm's total compensation

☒ ³ _____ % of the gross sales price of the Property

☐ A flat fee of \$ _____

☐ Other Fee(s) (specify name and amount): _____

- c. **Cooperative Compensation to Other Agents:** Seller has no duty to offer compensation to an agent working with a buyer, which is commonly referred to as cooperative compensation. Firm has provided Seller with Firm's best advice on the advantages and disadvantages of offering, or not offering, cooperative compensation. Seller accordingly ☐ does ☐ does not agree to offer cooperative compensation. If Seller *does* agree, check one of the following:

☐ Firm is authorized to offer 0 % of the gross sales price of the Property or a flat amount of \$ 0.00 to a cooperating agent, such as a seller subagent or a buyer's agent.

☒ Seller may offer 1 % of the gross sales price of the Property or a flat amount of \$ 0.00 to a cooperating agent, such as a seller subagent or a buyer's agent, directly through a separate document (such as Standard Form 220).

☐ Firm will offer cooperative compensation as explained in Firm's attached policy.

- i. If Seller authorizes Firm to offer cooperative compensation, Seller agrees that: (a) Firm may advertise and negotiate cooperative compensation on Seller's behalf; (b) any negotiated cooperative compensation must be paid by Seller to Firm at closing in addition to Firm's Fee; and (c) the negotiated cooperative compensation will be disbursed to the cooperating agent by Firm.

- ii. If Seller offers cooperative compensation directly, Seller authorizes Firm to advertise the cooperative compensation. Seller agrees to pay cooperative compensation at closing in compliance with any executed cooperative compensation agreement (such as Standard Form 220).

- iii. Nothing in this section will prohibit Seller from later offering to pay buyer's expenses in a purchase contract or later offering cooperative compensation directly to a cooperating agent in a separate document

- d. **Total Cost (Firm's Fee + Cooperative Compensation):** ~~4%~~ If property sells for list price \$7,200,000 ; Firm agrees to renegotiate

- e. **Firm's Fee Earned:** Except for any non-refundable retainer, Firm's Fee will be earned:

- i. If a ready, able, and willing buyer is procured by Firm or a cooperating agent substantially satisfying the price and terms agreed to by Seller in this Agreement.

- ii. Seller enters into a written contract ("Contract") during the term of this Agreement to sell, option, or convey the Property to a buyer.

- iii. **Protection Period:** The fee will also be deemed earned if, within 90 days after this Agreement expires, Seller either directly or indirectly agrees to sell, option, or convey the Property to any party procured by Firm while this Agreement was in effect. Within 15 days after the Expiration Date, Firm will deliver to Seller a list of the names of parties procured by Firm to which this protection period will apply. However, if Seller signs a valid listing agreement with another real estate broker before Seller agrees to sell, option, or convey the Property, then this protection period will not apply.

- f. **Due and Payable:** Any Firm's Fee earned will be due and payable to Firm at closing of a Contract, Seller's default on a Contract, Seller's unreasonable modification or cancellation of a Contract, or Seller's default of this Agreement (including Seller's refusal to sign an offer to purchase substantially satisfying the price and terms agreed to by Seller in this Agreement).

8. **Home Warranty:** Seller ☐ does ☒ does not agree to purchase a home warranty for the Property. If Seller does agree, the vendor, cost, sales tax, and Firm's compensation from vendor, if any, will not exceed: N/A

9. **Pre-Marketing Home Inspection:** Seller ☐ does ☒ does not agree to obtain and pay for a pre-marketing inspection for the Property.
10. **Earnest Money Deposit and Due Diligence Fee:**
- Firm ☒ does ☐ does not have a trust account to hold earnest monies.
 - If a buyer defaults on a purchase contract, Seller ☒ does ☐ does not agree to equally split any earnest money forfeited by the buyer, provided that Firm's portion will not exceed the fee agreed to in this Agreement.
 - Any due diligence fee will be paid to either ☐ Seller or ☒ (insert other party or parties): Willow Pond Estate LLC. Firm agrees to direct any potential buyer accordingly.
 - Seller authorizes Firm to provide any escrow agent with Seller's mailing address.
11. **Dual Agency:** Dual agency occurs when a real estate firm represents both the seller and the buyer in a transaction. Designated dual agency is a specific type of dual agency where a firm will appoint one agent to represent only the interests of the seller and a different agent to represent only the interests of the buyer. Designated dual agency permits a firm to fully advise and advocate for both a buyer and a seller as if the appointed agents were not both affiliated with the same firm. Not every real estate firm offers dual agency or designated dual agency. Authorizations available below may vary.
- Terms of Dual Agency:** If dual agency is permitted, Seller understands and agrees to the following:
 - Firm will act as Seller's exclusive agent up until dual agency occurs. However, in its separate representation of Seller and a buyer, Firm may obtain information which, if disclosed, could harm Seller's bargaining position.
 - Seller will have to make their own decisions as to what terms will be agreed to as part of an offer to purchase unless designated dual agency is directed by Seller below.
 - Unless required by law, Firm will not disclose to a buyer: that Seller may agree to a price or contract terms different than what Seller has offered; Seller's motivation for wanting to sell a property; and any other information that Seller has told Firm is confidential. Firm will similarly not reveal to Seller the same kind of information as it relates to a buyer.
 - Firm will represent Seller and the buyer in a balanced and fair manner, and Firm will assist both parties in their communications regarding the transaction. However, Firm will be limited in its ability to advocate for Seller, like an exclusive agent would, unless designated dual agency is directed below.
 - If designated dual agency is directed, an agent in Firm will not be designated to represent Seller or the buyer if that agent has received confidential information concerning the other party.
 - Seller has determined that the advantages of dual agency outweigh the disadvantages.
 - Authorizations:** Initial only as applicable below.

_____ Firm may NOT act as a dual agent in a transaction involving Seller.

_____ Firm may act as a dual agent in a transaction involving Seller.

If Firm may act as a dual agent, then initial only one line below:

_____ Seller does NOT authorize the same agent to represent both Seller and a buyer in dual agency.

_____ Seller does authorize the same agent to represent both Seller and a buyer in dual agency.

_____ Seller directs Firm to practice designated dual agency. If Seller directs Firm to practice designated dual agency, then Firm will practice designated dual agency unless: (i) it is not allowed under North Carolina law; or (ii) Seller authorizes Firm in writing to practice dual agency only.
 - Material Facts:** Regardless of whether dual agency is authorized, Firm must disclose any material facts to all parties in a transaction. This duty applies whether Firm is Seller's exclusive agent or a dual agent, including designated dual agency.
 - Waiver:** Should Firm become a dual agent, Seller waives all claims, damages, losses, expenses, and liabilities, other than for violations of the NC Real Estate License Law and intentional wrongful acts arising from Firm's role as a dual agent.
12. **Disclosures and Representations:** Seller agrees to update the following immediately if any changes occur. All disclosures and representations are to the best of Seller's knowledge.
- Seller ☐ is ☒ is not working with a relocation company.
 - Seller ☒ has ☐ has not received sample copies of the purchase contract and professional services disclosure form.
 - Seller ☒ has ☐ has not owned the Property for at least one year.

as needed

- t. The Property ☐ will ☒ will not include the following off-site and/or separate septic lot, boat slip, garage, parking space, or storage unit (description): N/A
- u. The Property ☐ is ☒ is not in violation of any law, ordinance, permit, or government regulation (including, but not limited to, those relating to building, stormwater, impervious surface, environmental protection, and zoning). If the Property is, explain details: N/A
- v. Other reasons Seller may not be able to sell the Property: N/A
- w. Other Seller Disclosures or Representations: N/A
13. **Seller's Duties:** Seller agrees to fully cooperate with Firm and further provide reasonable access to the Property; provide Firm with information and documents upon request; allow Firm to provide documents to other parties as necessary to facilitate a purchase; deliver a general warranty deed at closing; and comply with any purchase contract.
14. **Surveillance; Photographs; and Video:**
- Federal and state laws prohibit the recording of oral communications without consent. However, video surveillance without consent may be permitted. Seller may not intrude on a buyer's reasonable expectation of privacy. Seller should only video spaces in plain view. If Seller were to intrude on a buyer's privacy, then Seller may be subject to liability. Firm may not have control of pictures or videos of a property, and accordingly, such information will not be removed from public display.
 - Firm is specifically authorized to use, for any purposes whatsoever, any and all photographs, drawings, video, advertising copy or other information obtained by or provided to Firm pursuant to this Agreement (including but not limited to any information concerning the price and terms of the sale of the Property, the description of the Property and the length of time the Property is on the market) ("Materials"), both before and after the sale or, in the event there is not a sale, after this Agreement has expired or terminated. Seller shall not have or acquire any rights to use any of the Materials created by, on behalf of, or at the direction of Firm or an agent of Firm either during or after the Term of this Agreement without Firm's written consent. If Seller provides any Materials to Firm ("Seller Materials"), Seller represents that Seller owns the Seller Materials or otherwise has the legal right to provide the Seller Materials to Firm, and Seller grants to Firm and any listing service in which Firm or its agents participate a nonexclusive, perpetual license to use the Seller Materials, including the rights to display, reproduce, distribute or make derivative works from the Seller Materials. Seller agrees to indemnify and hold Firm and its agents harmless from any and all claims resulting from use of the Seller Materials under the terms of this license.
15. **Other Professional Advice:** Seller is advised to seek other professional advice regarding law, taxes, financing, insurance, surveying, wood destroying insects, structural soundness, engineering, building construction, and other matters related to purchasing real estate. Seller also should consider seeking legal advice regarding this Agreement. Firm may provide recommendations for these other services, but Firm cannot guarantee the quality or level of expertise. Seller agrees to hold Firm harmless regarding Seller's use of other professional services. Seller also agrees to fully indemnify Firm if a claim is brought against Firm stemming from Seller's use of other professionals or Seller's election not to use other professionals.
16. **Inspection Costs:** Unless otherwise agreed, Seller must pay for all inspection costs and other professional services related to selling the Property. This duty to pay will apply regardless of whether Seller closes on a property.
17. **Confidentiality:** Firm will not disclose the price or other terms of an offer by any buyer to a competing party without the express consent of that buyer. However, Seller may elect not to treat a buyer's offer as confidential. Seller may also elect not to disclose other offers and instruct Firm to keep that information confidential.
18. **WIRE FRAUD WARNING:** Before sending any wire, Seller should verify the recipient's phone number independently, and call the recipient to verify the wiring instructions. If Seller receives wiring instructions for a different bank, branch location, or account name or number, they should be presumed fraudulent. If fraud is at all suspected, do not send any funds, contact the recipient immediately, and presume that any phone number received in an email from the closing attorney, Firm, another real estate agent, or anyone else is fraudulent. Seller understands that there are risks associated with wire transfers that are not within the reasonable

control of Firm. Seller agrees to release and discharge Firm and Firm's agents from all claims not caused by gross negligence relating to a wire transfer associated with the Services.

19. **Additional Terms:** Seller grants property mgr 45 Days from end of due diligence to vacate the property
t Buyer agrees to pay for ALL inspections : Firm agrees to renegotiate compensation if sales price less than \$7.2 |
_____. If there is a conflict between the terms in this section and any other part of this Agreement, the terms in this section will control. Firm and Seller may also insert "see attached" and add additional terms with a separate addendum.
20. **Merger; Termination; Modification; Assignment; Enforcement; Attorney's Fees; and Governing Law:** This Agreement represents the entire agreement of the parties hereto. All prior understandings and agreements are merged into this document. This Agreement may only be terminated or modified by a written document signed by all parties, and it may not be assigned except by written consent of all parties. In the event of termination, Firm may require reimbursement of fees, costs, and expenses, in addition to other remedies. If this Subject to statutory limitations, if legal proceedings are instituted to enforce any provision of this agreement, the prevailing party in the proceeding shall be entitled to recover from the non-prevailing party reasonable attorney's fees and court costs incurred in connection with the proceeding. This agreement is governed by North Carolina law.
21. **NONDISCRIMINATION:** FIRM SHALL CONDUCT ALL BROKERAGE ACTIVITIES IN REGARD TO THIS AGREEMENT WITHOUT RESPECT TO THE RACE, COLOR, RELIGION, SEX, NATIONAL ORIGIN, HANDICAP, OR FAMILIAL STATUS OF ANY PARTY OR PROSPECTIVE PARTY. FURTHER, REALTORS® HAVE AN ETHICAL DUTY TO CONDUCT SUCH ACTIVITIES WITHOUT RESPECT TO THE SEXUAL ORIENTATION OR GENDER IDENTITY OF ANY PARTY OR PROSPECTIVE PARTY.

THE NORTH CAROLINA ASSOCIATION OF REALTORS®, INC., MAKES NO REPRESENTATION AS TO THE LEGAL VALIDITY OR ADEQUACY OF ANY PROVISION OF THIS FORM IN ANY TRANSACTION.

Seller: (Name) Willow Pond Estate LLC (Signature) _____ (Date) _____
 Contact: (Phone and Email) _____
 Mailing Address: _____

Seller: (Name) _____ (Signature) _____ (Date) _____
 Contact: (Phone and Email) _____
 Mailing Address: _____

Entity Seller: (Name of LLC, Corp., Trust, etc.) WILLOW POND ESTATE LLC
 By: (Name & Title) Frank Dupuis (Signature) _____ (Date) _____
 Contact: (Phone and Email) 310-567-6121; fjdupuis@hotmail.com
 Mailing Address: _____

Firm: (Name) NextHome World Class (License Num.) 10656 (Phone) (704) 729-7000
 By: (Agent Signature) _____ (License Num.) 306486 (Date) _____
 Office Address: 287 Alcove Road Mooresville NC 28117
 Agent Contact: (Phone, Fax, and Email) (704) 253-2357 leanne@leanneworldclass.com

ADDENDUM _____

PROPERTY: 447 Willow Pond Lane, Hiddenite, NC 28636

1. (From: New Exclusive Right to Sell Listing Agreement 101 - NCR, Page 2,
personalPropertyDescription)...

exercise equipment in basement etc. can be negotiated as a separate "Bill Of Sale"

Also included as "Bill of Sale" is the refrigerator located in carport

Date: _____

Date: _____

Seller Signature _____

Buyer Signature _____

Date: _____

Date: _____

Seller Signature _____

Buyer Signature _____